

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

Case No.: 22-23

MARINE TRANSPORT LOGISTICS, INC

Complainant

vs.

CMA-CGM (America), LLC

Respondent

**MOTION BY MTL SEEKING LEAVE  
TO FILE A REVISED AMENDED COMPLAINT**

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Pursuant to the Order dated October 28, 2022, MTL respectfully submits this motion at the pre-discovery phase, seeking to file a revised amended complaint. In addition to seeking to add additional allegations, MTL seeks to add a second party: CMA CGM S.A.

I was informed by Counsel for the current Respondent (CMA-CGM (America), LLC), that this Respondent does not have authority to accept service of process on behalf of CMA CGM S.A. I would submit that this is a strange position to take when the current Respondent appears to hold itself out as the agent for CMA-CGM S.A. in all aspects of a shipping transaction, and actually files petitions and other filings on behalf of CMA-CGM S.A before the Federal Maritime Commission. For example, in Petition No. P2-20, the petition by CMA CGM S.A was signed by Counsel for the current Respondent: CMA-CGM (America) LLC. Therefore, it is being submitted that the Commission may find waiver and serve CMA CGM S.A. through CMA-CGM (America) LLC. To further support this position, the Court is respectfully referred to MTL's prior petition against CMA under Docket No. 18-07, where the same respondent that is listed in the above-captioned matter (CMA-CGM (America) LLC) was the sole respondent, and

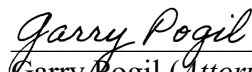
CMA's then motion to dismiss on the pleadings did not raise the issue being raised now, namely that CMA-CGM (America) LLC) was not the proper party. (*See* Docket No. 18-07, Docket Entry #24).

In any event, the two proposed addresses for service of process on CMA-CGM S.A., have been listed in the revised amended complaint.

The standard for amended pleadings is delineated in *Rule* 15(a)(2) of the Federal Rules of Civil Procedure: "The court should freely give leave when justice so requires." This motion is being made during the pre-answer stage of the proceedings, so it does not appear that any of the Respondents will be prejudiced in any way. It is true that an amended pleading, to be successful, should be plausible, such that it can survive a pre-answer motion to dismiss, and on this point, to avoid duplication, I rely on my previous arguments that I raised in my response to the current Respondent's motion to dismiss on the pleadings.

Dated: November 7, 2022

Respectfully Submitted,

  
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